

Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

In the instant matter, the court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as pled in the operative Complaint by Plaintiff. Plaintiff claims that Defendant failed to abide by the terms of the agreement – a loan for a car purchase - when they filed a lien against the vehicle after Plaintiff stopped making payments on the loan.

The Court finds that Defendant properly notified Plaintiff of their election to arbitrate, under the terms of the agreement, by virtue of indicating so in their Answer, as well as through a letter to Plaintiff reflecting as much (included as an Exhibit in Defendant's Motion to Compel).

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the agreement to arbitrate.

The Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

The Court, however, does not see the need to issue a further protective order with respect to any discovery in the matter. That the matter is stayed is sufficient to guard against any further discovery demands made by Plaintiff while arbitration is pending.

Disposition

Motion to Compel Arbitration and Stay Proceedings is **granted**.

Motion to Issue Protective Order is **denied**.

Defendant to file order for both motions.

13. 9:00 AM CASE NUMBER: L25-10452

CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO

*HEARING ON MOTION IN RE: AND NOTICE TO COMPEL ARBITRATION AND STAY PROCEEDING
FILED BY:

TENTATIVE RULING:

Background

Defendant filed a Motion to compel arbitration and stay proceeding, on 12/15/26.

Plaintiff filed a Response in opposition on 1/13/26. Defendant then filed a Reply, on

1/28/26, but this is untimely – Replies must be filed at least 5 court days in advance of the hearing – and the court will not consider it.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

It is the moving party's burden to prove the existence of such an agreement. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.

In the instant matter, insufficient evidence was provided to the court to show the existence of any agreement, let alone one that contained an arbitration provision. No exhibits contained any signed agreements between the parties, and neither did the Complaint.

Disposition

Defendant's Motion is **denied**.

Defendant to file the Order.

14. 9:00 AM CASE NUMBER: MSL22-00512

CASE NAME: BANK OF AMERICA VS RODRIGUEZ

***HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion to vacate dismissal and for entry of judgment per stipulated agreement.

The Motion is unopposed.

Proof of service for this Motion, however, suggests mail service on Defendant at an address that is not apparent in any prior pleadings or attachments. The only address for Defendant in the Court File is that at which personal service occurred for service of process, and it was a different address than the one indicated for this Motion. No